CONTRACTOR'S DRUG AND ALCOHOL FREE WORKPLACE POLICY

1.0 Purpose

The purpose of Contractor's Drug and Alcohol Free Workplace Policy (the "Policy") is to promote a safe, healthy, and productive work environment for Continental Employees and Contractors (as hereinafter defined) who are authorized to perform work on or be present at Continental Property or Jobsites (as hereinafter defined) and to protect Continental Property or Jobsites (as hereinafter defined) from damage which might otherwise result from drug and alcohol use and/or abuse. Continental requires all Contractors (as hereinafter defined) to adopt and enforce a written policy on drugs and alcohol which complies with the laws of the states in which each Contractor performs work on or is present at Continental Property or Jobsites (as hereinafter defined) and meets or exceeds the requirements Continental imposes on its own employees.

2.0 Definitions

A. Background Search – a national screen ascertaining convictions of a felony involving harm to others or listing as a registered sex offender.

B. Continental Property or Jobsites - all real or personal property, including but not limited to facilities, lease locations, buildings, vehicles, products and equipment, either owned or controlled by Continental.

C. Contractors - any and all contractors, vendors, and other third party service providers and their personnel (including employees or agents of any of the foregoing as well as subcontractors and employees of subcontractors of any of the foregoing) authorized to perform work on or be present at Continental Property or Jobsites.

D. DOT drug test – a drug test mandated by the Department of Transportation.

E. For Cause/Reasonable Suspicion Testing - if authorized by applicable state law, For Cause/Reasonable Suspicion Testing shall mean testing whenever there is a reasonable belief an employee is in violation of any of the prohibitions defined in this Policy.

F. Instant Testing Device – A FDA 510(k) "point of care" device which Continental may elect to use in connection with For Cause/Reasonable Suspicion Testing or Post-Incident Testing to screen for non-negative results.

G. Non-DOT drug test – a drug test not mandated by the Department of Transportation but in compliance with requirements contained in Attachment "A" hereto.

H. Prohibited Substances - (1) illicit or unprescribed drugs, controlled substances and mood or mind-altering substances (*i.e.*, any synthetic derivative/product that produces a marijuana-type high and any herbal products not intended for human consumption),

(2) prescribed drugs used in a manner inconsistent with the prescription and (3) alcoholic beverages.

I. Return to duty testing – if authorized by applicable state law, return to duty testing shall mean testing prior to an employee's being allowed to return to duty following a non-negative test and subsequent treatment, if re-employment is offered by Continental. Return to duty testing does not include return to work after FMLA.

J. Under the Influence - (1) the presence of a prohibited substance or metabolites of a prohibited substance in body fluids above the cut-off level established by this Policy or (2) the presence of a prohibited substance that affects an individual in any detectable manner.

3.0 Prohibitions

This Policy prohibits the following:

A. Possessing or using prescription drugs or over-the-counter medication that may cause impairment, except when all of the following conditions have been met:

i. The individual notifies his/her supervisor that he/she will be in possession of, or using, impairment-causing prescription drugs or over-the-counter medication and appropriate steps are taken to accommodate the possibility of impairment, including but not limited to, removal from work for the period of possible impairment; and

ii. Prescription drugs have been prescribed by a licensed physician authorizing the individual's use of such prescription drugs in a safety-sensitive position.

B. Using, possessing, selling, manufacturing, distributing, concealing or transporting on Continental Property or Jobsites any Prohibited Substance and/or illicit drug equipment or paraphernalia.

C. Being under the influence of Prohibited Substances while performing any work on Continental Property or Jobsites.

D. Switching or adulterating any urine, blood, or other sample used for testing.

E. Performing work on Continental Property or Jobsites when an individual has tested positive or refused testing in any employment-related test unless and until employee has met return to duty requirements contained in this Policy.

4.0 Searches and Inspections

At any time, Continental supervisors, their agents and assigns, may conduct unannounced searches and inspections of Contractors and their property while on Continental Property or Jobsites. These searches may be unannounced and may include, but are not limited to, any and all personal property and its vicinity, and may include the use of contraband detecting canines.

5.0 Testing

All specimen collection and handling shall be conducted in conformity with DOT collection requirements and guidelines and shall be sent to a SAMHSA/HHS-certified laboratory for analysis. Alcohol testing shall be conducted on devices approved by the National Highway Traffic Safety Administration (NHTSA) and in conformity with DOT alcohol testing requirements. For all tests, including all DOT-mandated alcohol tests; a breath or blood alcohol test yielding a 0.04 BAC or greater will be considered a positive result. Any employee who is found to have an alcohol concentration of 0.02 or greater but less than 0.04, shall not perform or continue to perform safety-sensitive functions on a Continental Resources jobsite, nor shall an employer permit the employee to perform or continue to perform safety-sensitive functions on a Continental Resources Jobsite, until the start of the employee's next regularly scheduled duty period, but not less than 24 hours following administration of the test. The employee must also have a negative breath or blood alcohol test 24 hours following the original test as described above.

A. Pre-employment/Pre-use Screening and Drug Testing

a. Contractors are required to subject new hires to pre-employment drug testing, all meeting the requirements described in Attachment "A". Personnel shall have been subject to a pre-employment drug test and received a negative test result pursuant to testing prescribed herein prior to their hire, in order to perform work for Continental Resources. DOT Contractor employees will follow DOT guidelines for pre-employment drug testing.
b. All contractors are required to provide a drug screen test result for selected employees.
c. Contractors who have not heretofore conducted random testing can achieve compliance by instituting a program which includes random testing and subjecting employees eligible to work on Continental Resources Property or Job sites to a Non-DOT "Pre-Access drug test" which meets the requirements of this addendum and submitting proof of this test for all employees contractor desires to be eligible to perform work on Continental Resources Property or Job Sites.

Continental strives to provide a safe and incident free work site for employees, customers, contractors and the communities in which they work. Continental conducts the following background screenings before hiring its own employees and strongly recommends (but does not mandate) all vendors and contractors that operate on a Continental location also conduct the following pre-employment background screenings before retaining individuals to provide services to Continental property:

Requirements:

1. Social Security Number (SSN) Verification – Verifies a person's social security number and provides address history to check against his/her application.
2. County Criminal Check – Searches the current county of residence court records for criminal convictions for the maximum time period permitted by applicable federal and state law.

3. National Criminal & Sex Offender Database Search – Searches the database for criminal convictions nationally and all 50 states for sex offenders for the maximum time period permitted by applicable federal and state law.

Continental reserves the right to reject an individual proposed by a contractor for work on Continental worksites, subject to applicable federal, state or local law. Contractor understands and agrees that Continental has the right to audit Contractor's compliance with both Continental's as well as Contractor's guidelines, policies and procedures.

Contractor remains an independent contractor. No joint venture, partnership, joint employment or similar relationship is established between contractor and Continental.

A. Incident Related Testing (Post-Incident Testing)

At a minimum but subject to applicable federal, state, and local laws or regulations, Continental requires post-incident testing of Continental Employees if: (1) Continental believes there is a reasonable possibility employee drug use contributed to the incident, (2) Continental believes testing may accurately identify if drug use resulted in impairment at the time of the incident, and (3) the employees are directly or potentially involved in the following:

- An incident occurring during the scope of employment which results in death, significant (as determined by Continental) onsite medical treatment, offsite medical treatment (including but not limited to hospitalization), or lost time of a Contractor or Continental Employee.
- An incident—whether offsite or on Continental Property or Jobsite—which results in death, significant (as determined by Continental) onsite medical treatment, or offsite medical treatment (including but not limited to hospitalization) of a third party.
- An incident resulting in major impact (as determined by Continental) to the environment, including but not limited to take of a federally protected species or its critical habitat, a release to waters of the state or waters of the United States, or any incident which generates negative publicity for Continental.
- An incident resulting in actual property damage estimated to exceed $500,000.00.
- An incident resulting in no actual consequences but having significant potential for adverse consequences (as determined by Continental); for example, an incident which could have resulted in a death, significant injury, or reportable environmental incident had the circumstances been slightly different.

When conducting Post-Incident Testing, Contractor may elect to use an Instant Testing Device to screen for non-negative results. If Contractor elects to use an Instant Testing Device, Contractor shall ensure follow-up testing is conducted by a NIDA/SAMSHA certified laboratory. If a negative result is obtained using the Instant Testing Device, Contractor shall provide Continental with the following information: (1) a document comparable to an official laboratory result which describes the negative result obtained; and (2) a description of the Instant Testing Device used, including the applicable expiration date of the Instant Testing Device.

B. For Cause/Reasonable Suspicion Testing

For Cause/Reasonable Suspicion Testing in compliance with requirements of this Policy and Attachment "A" shall be performed whenever authorized or allowed under state law. Contractor may be required to undergo drug and alcohol testing at any time it is reasonably believed that a contractor may be under the influence of drugs and alcohol.

When conducting For Cause/Reasonable Suspicion Testing, Contractor may elect to use an Instant Testing Device to screen for non-negative results. If Contractor elects to use an Instant Testing Device, Contractor shall ensure follow-up testing is conducted by a NIDA/SAMSHA certified laboratory. If a negative result is obtained using the Instant Testing Device, Contractor shall provide Continental with the following information: (1) a document comparable to an official laboratory result which describes the negative result obtained; and (2) a description of the Instant Testing Device used, including the applicable expiration date of the Instant Testing Device.

A Contractor or Contractor employee removed from Continental Property or Jobsites for Cause/Reasonable Suspicion Testing will be allowed to return to work on Continental Property or Jobsites only after the following steps have been completed:

(1) Contractor conducts For Cause/Reasonable Suspicion Testing, which shall be in compliance with this Policy, of the employee as soon as possible following the employee's removal from the site; and

(2) Contractor certifies in writing the test identification number, the employee's social security number, the test date and time, and a negative test result from a NIDA/SAMSHA certified laboratory.

C. Random Testing

All non-DOT Contractor employees shall be subject to unannounced random testing for alcohol and the non-DOT substances described in Attachment "A". Drug tests should be conducted at an annual rate of at least 50% and spread reasonably throughout the year (*i.e.*, 12.5% per quarter). Alcohol tests should be conducted at an annual rate of at least 10% and spread reasonably throughout the year (*i.e.*, 2.5% per quarter). Contractor's DOT employees will be subject to testing under this section of the Policy in addition to any of Contractor's guidelines applicable to random drug testing of DOT employees. Once a Contractor employee has been informed of his or her selection for random drug and/or alcohol testing, the Contractor employee will be instructed to report immediately to the collection site; for purposes of the preceding sentence, "immediately" means an amount of time not to exceed normal and customary commute time to the designated collection site plus thirty (30) minutes. Failing to report to the collection site, refusing to submit to a test, or adulterating a specimen is considered the same as a positive test, and the Contractor employee will be prohibited from entering Continental Property or Jobsites.

D. Additional Testing

To the extent allowed by state law, Contractor's employees on Continental Property or Jobsites are subject to unannounced drug & alcohol testing. This testing is scheduled at Continental's sole discretion. Continental shall determine the scope of this testing. This testing may include, but is not limited to, all Contractor employees on Continental Property or Jobsites, or may apply to a particular shift, crew, location, craft, or Contractor or other similar category, including a random selection based on site access records.

6.0 Violation Consequences and Contractor Discretion

Any Contractor employee who refuses to cooperate with the searches and tests included in this Policy and/or Contractor's policy or are found in violation of either the Policy or Contractor's policy are subject to permanent removal from all Continental Property and Jobsites; provided, however, in the event Contractor elects to retain or rehire a Contractor employee found to be violating the Policy and/or Contractor's policy, Contractor shall be prohibited from permitting the Contractor employee to work or be present on Continental Property or Jobsites unless Contractor has first satisfied the following four (4) conditions:

(1) Contractor shall obtain prior written approval from Continental authorizing the Contractor employee to return to Continental Property or Jobsites if the requirements in 1-3 below have been satisfied;

(2) Contractor shall refer the employee to a Substance Abuse Professional ("SAP") by providing the employee with a list of Continental-approved SAPs; the list will include SAP names, addresses, and telephone numbers. Any Contractor employee who has violated the Policy or Contractor's policy cannot resume his or her duties for Continental until a SAP confirms the employee has successfully completed an education or treatment program prescribed by the SAP;

(3) Contractor shall require the employee to undergo return-to-duty drug and alcohol testing, and results from the test must confirm the absence of any controlled substance use/abuse and an alcohol concentration of less than 0.02 and

(4) Contractor shall submit to Continental or its designee the Contractor employee's return-to-duty drug and alcohol test results.

Upon having satisfied the preceding four (4) conditions, Contractor may permit the employee to return to Continental Property or Jobsites; provided, however, during the twelve (12)-month period following the date upon which the Contractor employee is authorized to return to Continental Property and Jobsites, the employee shall be subject to unannounced follow-up alcohol and/or controlled substance testing as required by the SAP and, at a minimum, tested at least six (6) times on a random basis.

7.0 Substance Abuse Awareness and Supervisor Training

A member of Contractor's management, who is authorized to sign on behalf of Contractor, must sign the Contractor Acknowledgment and Certification form electronically through the TPS Alert database to certify Contractor has received, read, understands, has added this Policy to Contractor's drug and alcohol free workplace policies and/or programs, agrees to comply with the Policy, and will make the acknowledgment form available to Continental upon Continental's request.
Contractor shall provide training on the contents of this Policy, recognition of performance indicators suggesting probable drug or alcohol use, and the detrimental effects on personal health and workplace safety which can result from drug or alcohol use. Any Contractor employee who is authorized to make a determination whether a Contractor must be subjected to For Cause/Reasonable Suspicion Testing shall receive training on the "signs and symptoms" of drug and alcohol use, including but not limited to two separate 60-minute periods of training (one for identification of probable drug use and one for identification of probable alcohol use) to identify specific, contemporaneous physical, behavioral, and performance indicators of probable drug use and probable alcohol use; records of Contractor employees trained (including name of the trained employee and date of the training) must be maintained by the Contractor and made available to Continental or its agent upon request.

8.0 Applicable Laws

Contractor shall comply with all applicable federal, state, and local drug and alcohol related laws and regulations (*i.e.*, DOT regulations, Department of Defense (DOD) Drug-Free Workplace Policy, Drug-Free Workplace Act of 1988, etc.) and to the extent this Policy conflicts with the above, the federal, state and local laws shall prevail.

9.0 Audit

Continental shall have the right, at its discretion, to perform unannounced audits of the Contractor's drug and alcohol program to verify Contractor's policy and its enforcement comply with this Policy.

Records required to be maintained by this Policy shall be available for inspection by Continental or its agent during the period Contractor is performing work for Continental and for a period of three (3) years after Contractor ceases to perform work for Continental.

Contractor will provide any and all information requested by Continental or its agent deemed necessary by Continental or its agent to establish and confirm Contractor's full compliance with the requirements of Contractor's policy and/or this Policy.

ATTACHMENT "A"
Required Non-DOT Drug Tests & Cutoffs

TYPE OF DRUG Initial Test Analyte	INITIAL TEST Cutoff Concentration	CONFIRMATORY TEST Analyte	CONFIRMATORY TEST Cutoff Concentration
6-AM	10 ng/mL	6-AM	10 ng/mL
AMP/MAMP	500 ng/mL	Amphetamine Methamphetamine	250 ng/mL 250 ng/mL
Barbiturates	300 ng/mL	Amobarbital Butabarbital Butalbital Pentobarbital Phenobarbital Secobarbital	200 ng/mL 200 ng/mL 200 ng/mL 200 ng/mL 200 ng/mL 200 ng/mL
Benzodiazepines	300 ng/mL	Alprazolam Diazepam Ethylflurazepam Lorazepam Nordiazepam Oxazepam Temazepam	300 ng/mL 300 ng/mL 300 ng/mL 300 ng/mL 300 ng/mL 300 ng/mL 300 ng/mL
Cocaine	150 ng/mL	BZE	100 ng/mL
Marijuana	50 ng/mL	THCA	15 ng/mL
Methadone	300 ng/mL	Methadone EDDP	200 ng/mL 200 ng/mL
Methaqualone	300 ng/mL	Methaqualone	300 ng/mL
COD/MOR	2000 ng/mL	Codeine Morphine	2000 ng/mL 2000 ng/mL
OXYC/OXYM	100 ng/mL	Oxycodone Oxymorphone	100 ng/mL 100 ng/mL
Propoxyphene	300 ng/mL	Propoxyphene	200 ng/mL
Phencyclidine	25 ng/mL	Phencyclidine	25 ng/mL
MDMA/MDA	500 ng/mL	MDA MDMA	250 ng/mL 250 ng/mL
HYC/HYM	300 ng/mL	Hydrocodone Hydromorphone	100 ng/mL 100 ng/mL
ALL ALCOHOL TESTING METHODS USED: **Saliva or breath**		Screen Level .020	Confirmation Level .040

Required DOT Drug Tests & Cutoffs

TYPE OF DRUG Initial Test Analyte	INITIAL TEST Cutoff Concentration	CONFIRMATORY TEST Analyte	CONFIRMATORY TEST Cutoff Concentration
Marijuana metabolites	50 ng/mL	THCA[1]	15 ng/mL
Cocaine metabolites	150 ng/mL	Benzoylecgonine	100 ng/mL
Opiate metabolites:			
Codeine/Morphine	2000 ng/mL	Codeine	2000 ng/mL
		Morphine	2000 ng/mL
6-acetylmorphine (6-AM)	10 ng/mL	6-acetylmorphone (6-AM)	10 ng/mL
Hydrocodone/Hydromorphone	300 ng/mL	Hydrocodone	100 ng/mL
		Hydromorphone	100 ng/mL
Oxycodone/Oxymorphone	100 ng/mL	Oxycodone	100 ng/mL
		Oxymorphone	100 ng/mL
Phencyclidine (PCP)	25 ng/mL	Phencyclidine	25 ng/mL
Amphetamines: AMP/MAMP	500 ng/mL	Amphetamine Methamphetamine	250 ng/mL 250 ng/mL
MDMA	500 ng/mL	MDMA[2] MDA[3] MDEA[4]	250 ng/mL[5] 250 ng/mL
ALL ALCOHOL TESTING METHODS USED: Saliva or breath		**Screen Level** **.020**	**Confirmation Level** **.040**

[2]Methylenedioxymethamphetamine (MDMA)
[3]Methylenedioxyamphetamine (MDA)
[4]Methylenedioxyethylamphetamine (MDEA)
[5]Specimen must also contain amphetamine at a concentration of greater than or equal to 100 ng/mL.